

THE PUNJAB VAGRANCY ORDINANCE, 1958

(XX of 1958)

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TEXT

¹THE ²[PUNJAB] VAGRANCY ORDINANCE, 1958

(XX of 1958)

[1 October 1958]

An
Ordinance
to amend and consolidate the law relating to vagrancy in the Province of ³[the Punjab].

Preamble.— WHEREAS it is expedient to amend and consolidate the law relating to vagrancy in the Province of ⁴[the Punjab] in the manner hereinafter appearing;

AND WHEREAS the Provincial Assembly of West Pakistan is not in session and the Governor of West Pakistan is satisfied that circumstances exist which render immediate action necessary;

NOW, THEREFORE, in exercise of the powers conferred by Article 102 of the Constitution, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the ⁵[Punjab] Vagrancy Ordinance, 1958.

⁶[(2) It extends to the whole of the Province of ⁷[the Punjab], except the Tribal Areas.]

(3) It shall come into force in such area or areas and on such date or dates as Government may, by notification, direct.

2. Definitions.— In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

(a) “child” means a person under the age of fourteen years;

(b) “Controller” means the Controller of Vagrancy, ¹[Punjab];

¹This Ordinance was promulgated by the Governor of West Pakistan on October 1, 1958 (XX of 1958), published in the Gazette of West Pakistan (Extraordinary), dated October 1, 1958, pp. 1343-1350; saved and given permanent effect by Article 225 of the Constitution of the Islamic Republic of Pakistan (1962).

²Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 17.

³*Ibid.*

⁴*Ibid.*

⁵*Ibid.*

⁶Substituted by the West Pakistan Laws (Extension to Karachi) Ordinance, 1964 (VII of 1964), published in the Gazette of West Pakistan (Extraordinary), dated May 25, 1964, pp. 1679-1688, s. 2 read with Schedule, Serial No. 15.

⁷Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 17.

- (c) “Government” means the ²[Provincial Government of the Punjab];
- (d) “guardian” in relation to a child, includes any person who in the opinion of the court having cognizance of any case in which a child is concerned, has for the time being the charge of or control over such child;
- ³[(da) “organizer” means a person who organizes or employs or causes to employ one or more person or child for the purpose of vagrancy;
- (db) “person” includes a transgender person as defined in the Transgender Persons (Protection of Rights) Act, 2018 (XIII of 2018);]
- (e) “prescribed” means prescribed by rules made under this Ordinance;
- (f) “public place” includes any public park, garden, railway station, ground or vehicle to which the public for the time being have access, whether on payment or otherwise;
- (g) “vagrant” means a person who—
 - (i) solicits or receives alms in a public place;
 - (ii) exposes or exhibits any sore, wound, injury, deformity or disease in a public place for the purpose of soliciting or receiving alms;
 - (iii) allows himself to be used as an exhibit for the purpose of soliciting or receiving alms;
 - (iv) enters on any private premises without the invitation of the occupier for the purpose of soliciting or receiving alms;
 but does not include a person who solicits or receives money, food or gift for a purpose authorised by rules under a prescribed certificate;
- (h) “welfare home” means an institution established and maintained by Government for the detention, training, employment and maintenance of vagrants and their dependents other than those who are lepers, lunatics or suffering from contagious diseases and includes an institution notified by Government as such for the purposes of this Ordinance.

3. Welfare homes.— (1) Government shall establish and maintain one or more welfare homes at such place or places as it thinks fit for the custody and detention of vagrants.

(2) Government may, by notification, declare any existing charitable or other institution with previous consent of the controlling authority of such institution

¹*Ibid.*

²Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 17.

³Inserted by the Punjab Vagrancy (Amendment) Act 2025 (XVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, pp. 3599-3600, s. 2.

and on such conditions as may be mutually agreed upon between Government and the said authority, to be a welfare home for the purposes of this Ordinance.

4. Manager.— Every welfare home shall be under the immediate charge of a manager appointed by Government and such manager shall be assisted by such medical and educational staff as Government may appoint.

5. Duties of the manager.— (1) The manager of a welfare home shall, as soon as may be, get every vagrant medically examined and the report of the examination shall state, *inter alia*—

- (a) the sex and the age of the vagrant;
- (b) whether the vagrant is a leper?
- (c) whether he is suffering from any other contagious disease?
- (d) whether the vagrant is insane, or mentally deficient?
- (e) what is the general state of health and bodily condition of the vagrant and for which, if any, of the prescribed types of work such vagrant is fit?

(2) The manager of a welfare home shall keep the following classes of vagrants separately from each other—

- (a) children;
- (b) females;
- (c) lepers or persons suffering from contagious diseases;
- (d) lunatics;
- (e) infirm, old or incapacitated;
- (f) able bodied:

Provided that children less than seven years of age or females may be allowed to take up residence in the same apartment in which any male member of their family is confined.

- (3) The manager shall arrange—
 - (a) for the education of the children detained in the welfare home;
 - (b) for such instruction of the vagrants, as may rehabilitate them in useful trades and make them self-supporting.

6. Voluntary admission to welfare homes.— Any old, infirm or disabled person or a child may present himself before the ¹[District Officer, Social Welfare] for being admitted to a welfare home and if the ²[District Officer, Social Welfare] is satisfied that such person has no source of livelihood, he may be detained in a welfare home

¹Substituted for the words "District Magistrate" by the Punjab Vagrancy (Amendment) Ordinance, 2001 (XXIX of 2001), published in the Punjab Gazette (Extraordinary), dated October 18, 2001, pp. 1739-1740, s. 2, which will remain in force under the Provisional Constitution (Amendment) Order 1999 (9 of 1999), Article 4, notwithstanding the maximum limit of three months prescribed under Article 128 of the Constitution of the Islamic Republic of Pakistan.

²*Ibid.*

till such time as such person becomes possessed of means of livelihood or applies for his release from custody.

7. Powers of police officer to arrest and search vagrants and to seize things liable to confiscation.— (1) Any police officer may without an order from a Magistrate and without a warrant, arrest and search any person who appears to him to be a vagrant and may seize anything found on or about such person which he has reason to believe to be liable to confiscation under this Ordinance.

(2) A person arrested under the last preceding sub-section, shall be released if he furnishes bail to the satisfaction of the police officer making arrest for his appearance before the Magistrate having jurisdiction in the area where the arrest is made.

(3) If the person arrested is not able to furnish bail to the satisfaction of the police officer making arrest, such person shall be detained in custody and shall be produced before the nearest Magistrate within a period of twenty-four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the Court of the Magistrate and no such person shall, be detained in custody beyond the said period without an authority of the Magistrate.

8. Trial.— When the person arrested under the last preceding section appears or is brought before the Magistrate, he shall be tried in accordance with the procedure prescribed for the trial of summons cases under Chapter XX of the Code of Criminal Procedure, 1898¹:

Provided that whenever any Magistrate, after having heard and recorded the whole or any part of the evidence in a trial, ceases to exercise jurisdiction therein, and is succeeded by another Magistrate, who has and who exercises such jurisdiction, the Magistrate so succeeding may act on the evidence so recorded by his predecessor or partly recorded by his predecessor and partly recorded by himself; or he may re-summon the witnesses and recommence the enquiry or trial.

9. Sentence for vagrancy.— If the Magistrate finds that a person is a vagrant, such person shall be punished with imprisonment of either description for a period not exceeding three years:

Provided that in any case in which a person who has not been previously convicted of an offence under this Ordinance, is convicted of an offence under this Ordinance, the Magistrate may instead of sentencing him to a term of imprisonment, release him after due admonition on his, or in case such vagrant is a child, on his guardian entering into a bond with or without sureties to appear and receive the sentence when called upon during such period (not exceeding three years) as the Magistrate may direct and in the meantime to refrain from conducting himself as a vagrant.

²[**10. Punishment for organizing, employing or causing a person or child to ask for alms.**— (1) Whoever, being organizer, employees or causes:

¹V of 1898.

²Substituted by the Punjab Vagrancy (Amendment) Act 2025 (XVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, pp. 3599-3600, s. 3.

- (a) a person, without any injury or incapacitation, to solicit or receive alms or uses him as exhibit for the purpose of soliciting or receiving alms, shall be punished with imprisonment which may extend to three years and fine up to three hundred thousand rupees but not less than one hundred thousand rupees and in case of default of fine, the offender shall undergo further imprisonment of six months; or
- (b) more than one person, without any injury or incapacitation, to solicit or receive alms or uses them as exhibit for the purpose of soliciting or receiving alms, shall be punished with imprisonment which may extend to five years but not less than three years and fine up to five hundred thousand rupees but not less than three hundred thousand rupees and in case of default of fine, the offender shall undergo further imprisonment of six months; or
- (c) a child, without any injury or incapacitation, to solicit or receive alms or uses him as exhibit for the purpose of soliciting or receiving alms, shall be punished with imprisonment which may extend to five years but not less than three years and fine up to five hundred thousand rupees but not less than three hundred thousand rupees and in case of default of fine, the offender shall undergo further imprisonment of six months; or
- (d) more than one child, without any injury or incapacitation, to solicit or receive alms or uses them as exhibit for the purpose of soliciting or receiving alms, shall be punished with imprisonment which may extend to seven years but not less than five years and fine up to seven hundred thousand rupees but not less than five hundred thousand rupees and in case of default of fine, the offender shall undergo further imprisonment of one year; or
- (e) one or more than one person, or child with any injury or incapacitation, to solicit or receive alms or uses such child as exhibit for the purpose of soliciting or receiving alms shall be punished with imprisonment which may extend to ten years but not less than seven years and fine up to two million rupees but not less than one million rupees and in case of default of fine, the offender shall undergo further imprisonment of two years.

(2) Whoever, being guardian, employs, connives at or causes a child to solicit or receive alms or uses such child as exhibit for the purpose of soliciting or receiving alms, shall be punished with imprisonment which may extend to three years and fine up to three hundred thousand rupees but not less than one hundred thousand rupees and in case of default of fine, the offender shall undergo further imprisonment of six months.

(3) Whoever, being organizer or guardian, as the case may be, previously convicted of an offence under this Ordinance, is convicted for the same offence, shall be liable to double punishment provided for that offence under this Ordinance.]

11. Presumption.— If a person has no ostensible source of subsistence and wanders about or remains in a public place in such condition or manner as raises a reasonable suspicion that he is there to solicit or receive alms, it shall be presumed, unless the contrary is proved that such person is a vagrant.

12. Detention of dependents.— (1) If any vagrant sentenced under section 9 to a term of imprisonment has a child below seven years of age or any other person wholly dependent upon him, the Magistrate may, after making such inquiry as he thinks fit and after giving such person an opportunity of being heard, direct that such child or person shall be detained in the welfare home so long as the vagrant remains in custody:

Provided that a child of the vagrant who is below the age of seven years shall be detained along with the vagrant until he attains the age of seven years.

(2) Where the dependent is a child above seven years of age, or when the child detained under the last preceding sub-section, attains the age of seven years, the Magistrate or any other officer empowered by Government in this behalf may direct that such child be detained in any other institution approved by Government.

13. Compulsory contribution by persons bound to maintain vagrants.— (1) If the Magistrate is satisfied that a vagrant or a person bound to maintain a vagrant has sufficient means, he shall make an order directing such vagrant or the person bound to maintain such vagrant, as the case may be, to contribute in the prescribed manner towards the maintenance of such vagrant in a welfare home:

Provided that no order under this sub-section shall be made without giving the person from whom contribution is required the opportunity of being heard.

(2) If any contribution directed by the Magistrate under the last preceding sub-section remains unpaid, the same may be recovered as arrears of land revenue.

14. Place of detention or imprisonment.— A vagrant arrested under this Ordinance shall remain in custody, or, if convicted serve his term of imprisonment in the prescribed manner, as the case may be, in the nearest welfare home or such other place as Government may by general or special order, direct.

15. Transfer of vagrants from welfare homes.— The Controller or any other officer specially empowered by Government in this behalf may by an order in writing direct the transfer of a vagrant from one welfare home to another or to any other place appointed by Government in this behalf.

16. Release on probation or short leave.— The Controller or any other officer specially empowered by Government in this behalf may, subject to such conditions as may be prescribed,—

- (a) release any vagrant on probation after he has served imprisonment for a period not less than one year;
- (b) release a vagrant detained in a welfare home by granting him a licence, and, after the expiration of three months from the commencement of the release on licence, recommend to Government the unconditional release of such vagrant if he considers that there is probability of such vagrant's abstaining from vagrancy;

- (c) grant short leave of absence to any vagrant detained in a welfare home¹[[* * *]]:

Provided that a vagrant contravening any condition relating to his release on licence may be re-arrested under the orders of the Controller and sent to the welfare home for completing the sentence awarded to him under section 9.

17. Powers of discharge of vagrants from welfare homes.— The Controller or any other officer specially empowered by Government in this behalf may discharge a vagrant from a welfare home—

- (a) if he is satisfied that a vagrant has become possessed of an income sufficient to enable him to support himself without resorting to vagrancy;
- (b) if a relative of such vagrant, or a person interested in the welfare of the vagrant, enters into a bond with or without sureties to look after and maintain such vagrant and to prevent him from resorting to vagrancy;
- (c) on the certificate of the manager of the welfare home that satisfactory employment has been obtained for such vagrant;
- (d) for any other good and sufficient reason to be recorded in writing.

18. Effect of other laws and enactments.— The provisions of this Ordinance, and any order made or action taken under this Ordinance, shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Ordinance, for the time being in force, and any instrument having its effect by virtue of any such enactment other than this Ordinance.

³**19. Cognizance and bail.**— All offences under this Ordinance shall be cognizable and non-bailable, except the offence punishable under section 9 which shall be cognizable and bailable.]

⁴**20. Jurisdiction.**— The offences punishable under section 10 shall be tried in accordance with the provisions of the Code of Criminal Procedure, 1898 (V of 1898).]

21. Appeal.— Any person aggrieved by an order of a Magistrate under this Ordinance may within thirty days of such order appeal to the ⁵[[* * * * *]] Sessions Court.

¹Added by the West Pakistan Laws (Extension to Karachi) Ordinance, 1964 (VII of 1964), published in the Gazette of West Pakistan (Extraordinary), dated May 25, 1964, pp. 1679-1688, s. 2, read with Schedule, Serial No. 15.

²Deleted for the words “and the District of Karachi” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 17.

³Substituted by the Punjab Vagrancy (Amendment) Act 2025 (XVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, pp. 3599-3600, s. 4.

⁴Substituted by the Punjab Vagrancy (Amendment) Act 2025 (XVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, pp. 3599-3600, s. 5.

⁵Omitted the words “District Magistrate and if such order is made by the District Magistrate to the” by the Punjab Vagrancy (Amendment) Ordinance, 2001 (XXIX of 2001), published in the Punjab Gazette (Extraordinary), dated October 18, 2001, pp. 1739-1740, s. 2, which will remain in force under the Provisional Constitution (Amendment) Order 1999 (9 of 1999), Article 4,

22. Persons to be deemed to be public servants.— All persons empowered to perform any function under this Ordinance shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860¹.

23. Indemnity.— No suit, prosecution, or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Ordinance.

24. Articles liable to confiscation.— All things and money found on or about a vagrant except the necessary wearing apparel shall be liable to confiscation to Government under this Ordinance.

25. Power to make rules.— (1) Government may make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

- (a) the purposes for which a person may solicit or receive money or ask for food or gift referred to in clause (g) of section 2 and the form of the certificate;
- (b) the manner in which Controller shall discharge his functions;
- (c) the manner in which a medical officer may examine a vagrant;
- (d) the types of works for which a vagrant may be reported fit;
- (e) the types of the hard labour which is to form the punishment;
- (f) the manner in which an imprisonment under this Ordinance may be served;
- (g) the manner in which a vagrant may be transferred from one welfare home to another or to any other place of detention;
- (h) the manner in which the manager of a welfare home is to certify that satisfactory employment has been obtained for a vagrant;
- (i) the place or institutions where children detained under this Ordinance are to be confined;
- (j) the places or institutions where lepers, lunatics and persons suffering from contagious diseases may be confined.

(3) Every rule under this Ordinance shall be laid before the ²[Provincial Assembly] and may be amended or repealed by a resolution of the said Assembly.

26. Repeal.— The Sind Vagrancy Act, 1947³, is hereby repealed.

notwithstanding the maximum limit of three months prescribed under Article 128 of the Constitution of the Islamic Republic of Pakistan.

¹XLV of 1860.

²Substituted for the words "West Pakistan Assembly" by the Punjab Laws (Adaptation) Order, 1974 (I of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 17.

³Sind XVII of 1947.